

Petition (the “Demurrer”). Redwood also filed a Motion to Strike the Amended Petition on April 1, 2026 to (the “Motion to Strike”). The Demurrer and the Motion to Strike were initially set for hearing on August 10, 2026.

By a later scheduling order, the Demurrer and the Motion to Strike were reset for hearing on August 17, 2026 and a briefing schedule was set. See Order entered June 11, 2026. A July 23, 2026 deadline was set for any opposition to the Demurrer and the Motion to Strike. *Id.*

Background and Analysis

No opposition was filed. Redwood filed a Notice of Non-Opposition on July 29, 2026. The Requests for Judicial Notice filed April 1, 2026 is GRANTED.

Both motions are fundamentally based on the same core defect—that Redwood is not a proper party to this writ proceeding and no proper cause of action has or could be pled against Redwood because it is not an administrative or public agency.

Although there are references to Redwood throughout the Amended Petition, none of the causes of action are pled against it. See Amended Petition, ¶161 *et seq.* Indeed, the pleading makes clear that Plaintiffs do not allege causes of action as against Redwood in this action. Amended Petition, ¶14 (“Petitioners do not seek adjudication in this writ proceeding of separate tort damages, statutory damages, civil-rights damages, punitive damages, accounting relief, conversion relief, or other non-writ merits claims against Redwood Property Investors III, LLC...”).

No basis has been shown by Plaintiffs to maintain the Amended Petition as against Redwood.

Disposition

The Court finds and orders as follows:

1. The Demurrer and the Motion to Strike are GRANTED. Leave to amend is DENIED.
2. The Court shall issue the order after hearing.

16. 9:00 AM CASE NUMBER: N25-1849
CASE NAME: GARY DARTEZ VS. CITY OF ANTIOCH RENT PROGRAM
***HEARING ON MOTION IN RE: STRIKE PETITIONERS' FIRST AMENDED PETITION**
FILED BY: REDWOOD PROPERTY INVESTORS III, LLC
TENTATIVE RULING:

See LINE 15 above.

17. 9:00 AM CASE NUMBER: N26-0602
CASE NAME: PETITION OF:RAHBAN ALGAZZALI
HEARING IN RE: PETITION TO COMPEL ARBITRATION
FILED BY:
TENTATIVE RULING:

The Petition of Abdo AlGazzali and Ali Abdulraman (“Petitioners”) to compel arbitration of claims against Mihne, Inc. (“Respondent”) is **CONTINUED** by the Court to October 5, 2026 at 9:00 a.m. in Department 34.